

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Magistrate Judge Kathleen M. Tafoya

Civil Action No. 17-cv-02629-KMT

DARYLL PROPP, and
CAROL A. PROPP,

Plaintiffs,

v.

AMERICAN FAMILY MUTUAL INSURANCE COMPANY,

Defendant.

SPECIAL VERDICT FORM

SECTION I. BREACH OF CONTRACT

1. Did Plaintiffs Carol and Daryll Propp sustain covered losses under their policy of insurance for cost of repair of Plaintiffs roof as a result of the May 8, 2017 storm? (Do not apply the policy deductible in answering this question.) (Yes or No)

ANSWER: Yes

2. Did Defendant fail to approve coverage for covered losses for the cost of repair of Plaintiffs' roof as a result of the May 8, 2017 storm? (Do not apply the policy deductible in answering this question.) (Yes or No)

ANSWER: No

3. Did Plaintiffs substantially perform their obligations under the insurance policy? (Yes or No)

ANSWER: No

If your answers to either Question 1, 2, or 3 was "No," stop and sign the verdict form.
If your answers to Questions 1, 2, and 3 were all "Yes," continue to Question 4 and then to Section II.

4. What was the dollar amount of covered loss under Plaintiffs' policy for cost of repair of Plaintiffs' roof as a result of the May 8, 2017 storm? (Do not apply the policy deductible in answering this question.)

ANSWER: \$ _____

SECTION II. PLAINTIFFS' DUTIES AFTER A LOSS

5. Did Defendant American Family prove by a preponderance of the evidence that the Plaintiffs failed to comply with their duties after a loss? (Yes or No).

ANSWER: _____

6. Did Plaintiffs' failure to comply with their duties after a loss materially and substantially disadvantage Defendant American Family in its effort to evaluate, investigate, or resolve Plaintiffs' claim? (Yes or No).

ANSWER: _____

5/8/19